Abbott

NON-DISCLOSURE AGREEMENT

SCHEDULE]

Item 1: **Agreement Date**	24/05/2024
Item 2: **Abbott** Name:	Abbott Labortories (Singapore) Pte Ltd
Business Identification No.:	197000079Z
Address:	Duo Tower, 3 Fraser Street #23-28 , Singapore 189352
Contact Person:	Terence Yap
Telephone Number:	6914 8248
Email:	Terence.yap@abbott.com
Item 3: **Company** Name:	Futurmaster Singapore PTE LTD
Business Identification No.:	201110630K
Address:	Fraser tower, 182 cecil street #17-10, Singapore 069547
Contact Person:	Vincent Berthou
Telephone Number:	+6596365003
Email:	vberthou@futurmaster.com
Item 4: **Permitted Purpose**	The review or evaluation of potential business opportunities between the Parties in respect of Demand Planning Software and/or IT Services
Item 5: **Special Conditions**	[The purpose of this section is to set out any variations to the Terms and Conditions or insert any additional terms for a specific contract. Do not amend the actual clauses in the Terms and Conditions. If there are no variations or additional terms, please insert "Nil"] NIL

This Agreement is made on and subject to the terms and conditions stipulated on the following pages.

Execution

Each Party represents to the other that it has the full authority and right to enter into this Agreement and that the signatory below is authorized and capable of binding the same.

Executed as an agreement.

Abbott	**Company**
Signature:	Signature:
Name: Davin Lodge	Name: Vincent Berthou
Date: 27 May 2024	Date: 24/05/2024
Title: Authorised Representative	Title: Authorised Representative

TERMS AND CONDITIONS

This Agreement is made on the date referred to in Item 1.

Parties

The party described in Item 2 (**Abbott**); and

The party described in Item 3 (**Company**),

Abbott and the Company may each be referred to in this Agreement as a "**Party**" and collectively as the "**Parties**".

Introduction

A. The Parties wish to have discussions for the Permitted Purpose. To assist in the discussions, each Party has requested the other to provide certain information, which they have agreed to do on the terms set out in this Agreement.

B. Each Party has agreed to keep confidential all Confidential Information disclosed to it by the other Party and not to use that information for any purpose other than for the Permitted Purpose.

Agreement

1. Definitions and Interpretation

1.1 In this Agreement, unless the contrary intention appears:

Agreement means this Agreement together with the Schedule and any Annexures and Exhibits identified in this Agreement.

Agreement Date means the date specified in item 1 of the Schedule.

Affiliates with respect to either Party, means a corporation or any other entity that directly or indirectly, through one or more intermediaries, controls, is controlled by, or is under common control with, such Party. As used herein the term "**control**" means possession of direct or indirect power to order or cause the direction of the management and polices of a corporation or other entity whether (a) through the ownership of more than fifty percent (50%) of the voting securities of the other entity, or (b) by contract, statute, regulation, or otherwise.

Confidential Information, comprises any and all information, whether disclosed orally or in writing in whatever form or medium by a Party and/or its Affiliates and/or its Representatives or visually observed while on the premises of a Party or its respective Affiliate, which is designated as confidential by the Party providing it or which by virtue of its character or the circumstances or manner of its disclosure is evidently of a confidential nature, including without limitation:

(a) the terms of this Agreement;

(b) information and/or materials relating, but not limited to, the business affairs, personnel, financial condition, operations, sales, marketing or promotional information, financial information, pricing information, assets and/or liabilities or commercial interests of a Party and its Affiliates or of a Third Party to which the Disclosing Party has lawful access that is disclosed pursuant to this Agreement;

(c) technical and other information which is not in the public domain including, without limitation, information in relation to current and future products, product development, business strategies and business forecasts and results, trade secrets, ideas, know how, research activities, concepts, plans and designs, regulatory strategies, lifecycle management strategies, manufacturing, distribution, commercial practices, scientific data, processes, intellectual property and intellectual property strategies;

(d) Materials;

(e) all personally identifiable information, such as name, title, address, telephone number and e-mail address;

(f) customer or client and supplier information;

(g) software and the source code of any such software; and

(h) information, data and results pertaining to tests and analysis performed with samples, if any.

Disclosing Party means the Party, including its Representatives, disclosing or providing Confidential Information.

Government Agency means any governmental, semi-governmental, administrative, fiscal, judicial or quasi-juridical body, department, commission, authority, tribunal, agency or entity.

Material means samples of any chemical or biological substance, device or delivery system, made available by one Party to the other pursuant to this Agreement.

Permitted Purpose means the permitted purpose set out in Item 4.

Personal Data shall have the meaning as defined in the *Personal Data Protection Act 2012*.

Receiving Party means the party, including its Representatives, receiving the Disclosing Party's Confidential Information.

Representatives, in respect of a Party or an Affiliate of a Party, means the directors, officers, employees, contractors (including sub-contractors), advisers and agents of that Party or that Affiliate (as the case may be) but, for the avoidance of doubt, does not include the other Party or the other Party's Affiliates or Representatives.

Third Party means a person who is neither a Party to this Agreement nor an Affiliate of a Party.

1.2 In this Agreement, unless expressed to the contrary:

(a) no rule of construction applies to the disadvantage of the party preparing this Agreement on the basis that it prepared or put forward this Agreement or any part of it.

(b) the singular includes the plural and vice versa;

(c) a reference to a clause, schedule or annexure is to a Clause of, or Schedule or Annexure to, this Agreement;

(d) a reference to a document includes a document in electronic form;

(e) a reference to writing includes writing in digital form;

(f) a reference to a document or agreement (including this Agreement), or a provision of a document or agreement (including this Agreement) is to that document, agreement or provision as amended, supplemented or replaced;

(g) a Party to this Agreement or to any other agreement or document includes a successor in title, permitted substitute or a permitted assign of that Party;

(h) a person includes any type of entity or body or persons, whether or not it is incorporated or has a separate legal identity, and any executor, administrator or successor in law of the person;

(i) the terms including, includes, in particular and similar expressions do not limit the meaning of the preceding words; and

(j) headings are for ease of reference only and do not affect the interpretation of this Agreement.

2. Consideration

2.1 Each Party gives the undertakings in and agrees to comply with the terms of this Agreement in consideration of the other Party agreeing to disclose the Confidential Information in accordance with this Agreement.

2.2 Neither Party is obliged to disclose any particular information to the other Party.

3. Obligation of confidence

3.1 The Parties agree that any Confidential Information relating to the Permitted Purpose and disclosed prior to the Agreement Date shall be deemed to have been disclosed hereunder and shall be subject to the terms of this Agreement.

3.2 In respect of all Confidential Information of a Disclosing Party, the Receiving Party agrees to:

(a) use all Confidential Information solely for the Permitted Purpose;

(b) not copy, reproduce or make any other record of any Confidential Information except to the extent reasonably necessary for a Permitted Purpose; and

(c) not disclose any Confidential Information of the Disclosing Party to any person except to the extent permitted pursuant to clause 4.

(d) Unless otherwise agreed in writing by the Parties, the Receiving Party must not or have a Third Party or a Representative reverse engineer, decompile, disassemble, chemical analyze or modify the Confidential Information (including the Materials, product, sample, prototype, electronic media, composition or equipment), or create derivative works based on any Confidential Information, for any purpose other than for the Permitted Purpose.

3.3 The term "Confidential Information" as used in this Agreement shall not include information that:

(a) is at the time of disclosure generally available to the public, or becomes generally available to the public other than by reason of breach of the provisions of this Agreement by the Receiving Party;

(b) was known to the Receiving Party prior to the date of receiving such Confidential Information from the other Party, as evidenced by written records;

(c) was or is subsequently disclosed to the Receiving Party without obligation of confidence by a Third Party owing no such obligations to the Disclosing Party in respect of that Confidential Information;

(d) was or is disclosed by the Receiving Party with the Disclosing Party's prior written approval; or

(e) was developed by or for the Receiving Party independently of the Confidential Information disclosed by the Disclosing Party and without reference to any part of such Confidential Information, as evidenced by written records.

The burden of proof shall be on the Receiving Party to demonstrate that one or more of the above exceptions apply to any information deemed to be Confidential Information.

3.4 Neither Party shall use the name of the other Party in any publicity or advertising materials without the other Party's prior written approval.

4. Permitted disclosures

4.1 Each Receiving Party may disclose Confidential Information in respect of the Disclosing Party:

(a) to any of the following:

(i) any Representative or Affiliate of the Receiving Party (or any Representative of any of its Affiliate) who needs to know that Confidential Information for a Permitted Purpose, but only to the extent that the relevant Representative or Affiliate has a need to know; or

(ii) the Receiving Party's legal, financial or taxation advisers, but only for the purpose of advising on or in relation to this Agreement;

(iii) a Party's Affiliate to whom that Party assigns or novates, or proposes to assign or novate, its rights or obligations under this Agreement in accordance with clause 14.5;

(b) provided that the relevant Representative, adviser, Affiliate or Third Party is subject to an appropriate individual duty or obligation to keep confidential that Confidential Information;

(c) where the Party to whom the Confidential Information belongs gives its prior written consent to the disclosure of that Confidential Information by the other Party provided such use or disclosure is in accordance with the terms of that agreement; or

(d) where disclosure of the other Party's Confidential Information is required by law, court order, order or notice of any Government Agency, or the rules of any stock exchange, by which the Party is bound provided that:

(i) prompt advance notice of such disclosure requirement is provided to the Disclosing Party and in the event that such prior notice is not permitted by law or reasonably practicable, then notice must be given to the other Party as soon as it becomes permitted or reasonably practicable, as the case may be;

(ii) if reasonably practicable, the Receiving Party consults with and follow any reasonable directions from the Disclosing Party to minimise the disclosure;

(iii) such disclosure is limited to only that portion of the Confidential Information that is legally required to be disclosed; and

(iv) the required disclosures under this clause 4.1(d) shall not alter the obligations of the Party disclosing the Confidential Information pursuant to this clause 4.1(d) towards any other Third Party and shall not be qualified as an exception set out in clause 3.3.

5. Exchange of Materials

5.1 In the event any Materials are provided under this Agreement, the Party receiving the Materials:

(a) shall not administer the Materials received to any human being or any animal, if not otherwise agreed in writing by the Parties;

(b) shall ensure the Materials are used under the Receiving Party's exclusive responsibility and the Disclosing Party will not be liable for any consequences of such use. The Materials are to be used and handled with caution and prudence, since not all characteristics of the Materials are necessarily known; and

(c) agrees and accepts that the Materials are being provided with no warranties, express or implied of merchantability or fitness for a particular purpose or non-infringement of Third Party intellectual property rights or otherwise.

6. Security and Control

6.1 Each Party must:

(a) ensure, at all times, that each Representative or Affiliate of that Party (or Representative of any such Affiliate) to whom the Disclosing Party's Confidential Information is disclosed is made aware of the confidential nature of the information and complies with the Receiving Party's obligations under clauses 3, 4 and 6 as if the Representative or Affiliate were a party

to this Agreement;

(b) establish and maintain effective security measures to safeguard Confidential Information from theft, loss, damage, and any access or use not authorised by this Agreement;

(c) keep Confidential Information under its control; and

(d) immediately notify the other Party of any suspected, actual, likely or threatened theft, loss, damage or unauthorised access, use, copying or disclosure of Confidential Information.

6.2 The Receiving Party shall accept responsibility for each Representative as if the Representative's activities in relation to the Confidential Information were carried out by the Receiving Party itself.

6.3 Each Party must provide assistance, reasonably requested by the other Party in relation to any proceedings that the other Party may take against any person for unauthorised use, copying or disclosure of that other Party's Confidential Information.

7. Data Protection and Privacy

7.1 The Parties shall comply with all applicable data protection and privacy laws.

7.2 The legal representatives of Abbott and the Company agree that all Personal Data reflected in, exchanged or generated in connection with this Agreement might be included respectively in Abbott's and/or its Affiliates and Company's and/or its Affiliates files, in order to manage this Agreement and the Permitted Purpose. The Parties agree that any such Personal Data received by the other Party, and if not agreed otherwise between the Parties, shall be considered Confidential Information of the Party providing the respective Personal Data.

8. Remedies

8.1 Each Receiving Party acknowledges that any breach or threatened breach of this Agreement may cause the Disclosing Party immediate and irreparable harm for which damages alone may not be an adequate remedy.

8.2 Each Party agrees that the other Party may seek equitable relief, including injunction and specific performance, in the event of any actual or threatened breach of the provisions of this Agreement by a Party or its Representatives, without prejudice to any other rights and remedies otherwise available to the other Party and its Affiliates.

9. No licence and No Transfer of Ownership

9.1 Neither Party will be obligated to enter into any further agreement, and further, nothing contained in this Agreement, by implication, estoppel or otherwise, shall be construed as granting either Party any right or license or transferring any ownership to the Confidential Information received from the other Party or any patents, patent applications, copyright, or other intellectual property or proprietary right or technologies.

9.2 This clause 9 will survive termination or expiration of this Agreement.

10. Continuing Obligations

10.1 The terms of this Agreement shall continue to apply to the Parties for a period of seven (7) years despite any completion or termination of the Permitted Purpose.

11. Return or Destruction of Information

11.1 On termination or completion of the Permitted Purpose, or upon request from the Disclosing Party at any time, the Receiving Party will promptly cease all use of the Materials and Confidential Information of the Disclosing Party and return to the Disclosing Party or destroy (at the Disclosing Party's option), all Confidential Information and any Materials, other than as automatically archived in segregated electronic back-up files, save that each Party may retain one (1) archival copy of the Confidential Information received under this Agreement for the sole purpose of ascertaining ongoing obligations arising from this Agreement. Notwithstanding any such return or destruction, each Party will continue to be bound by its obligations under the terms of this Agreement.

12. Mutual Representations

12.1 Further, each Party represents to the other Party that the term and conduct of this Agreement will not violate the rights of any Third Party. In addition, each Party acknowledges that the Confidential Information provided pursuant to this Agreement in no way constitutes or gives rise to any representation or warranty as to the accuracy or completeness thereof or as to the non-occurrence of any changes in circumstances surrounding the subject matter of this Agreement since the dates as of which the Confidential Information is provided.

13. Notices

13.1 Except where otherwise expressly specified in this Agreement, any notice, approval, consent, request, demand or other communication required or permitted to be given under this Agreement (**Notice**) must be:

(a) in writing, in English and signed by a person duly authorised by the sender; and

(b) hand delivered or sent by pre-paid post or email to the address or email address for that party set out in the Schedule.

13.2 A Notice given in accordance with clause 13.1 will be taken to have been duly given and received by the intended recipient:

(a) if hand delivered, when it has been left at intended recipient's address;

(b) if sent by pre-paid post, on the second day (or, if posted to or from a place outside Singapore, on the fifth day) after the date of posting; and

(c) if sent by email, on the earlier of the sender receiving an automated message confirming delivery or, provided that no automated message is received stating that the email has not been delivered, three hours after the time the email was sent by the sender (as specified in the device from which the email was sent),

but, if the result is that a Notice would be taken to be given after 5pm in the jurisdiction of the recipient or on a day that is not a business day in that jurisdiction, the Notice will be taken to be given and received at 9am on the next business day in that jurisdiction.

13.3 A party may vary the address or email address to which any Notice required or permitted to be given to it may be sent by giving the other party notice of the variation in accordance with this clause 13.

14. General

14.1 This Agreement constitutes the entire understanding between the Parties as to the subject matter of this Agreement and supersedes all prior negotiations, agreements or understandings (whether express or implied) between the Parties in connection with the subject matter of this Agreement.

14.2 If any clause or part of a clause is illegal, unenforceable or

invalid, that clause or part is to be treated as removed from this Agreement, but the rest of this Agreement is not affected.

14.3 A single or partial exercise by Abbott of a right, power or remedy does not prevent or restrict another or further exercise by Abbott of that or any other right, power or remedy. Abbott's failure or delay in exercising a right, power or remedy does not constitute a waiver of the right, power or remedy. Any such waiver must be given in writing by Abbott and is effective only to the extent set out in writing.

14.4 Any variation to the terms of this Agreement must be made in writing and signed by both Parties.

14.5 Neither party may assign this Agreement or any of its rights under it, nor novate its rights and obligations under this Agreement, without the other party's prior written consent, but Abbott may assign any or all of its rights, or novate its rights and obligations, under this Agreement to an Affiliate, without the Company's consent.

14.6 The provisions of this Agreement are solely for the benefit of the Parties and their respective Affiliates, and their permitted successors and assigns, and are not intended to confer upon any Third Party.

14.7 In the performance of the Agreement, each Party shall be deemed to be and shall act as an independent contractor and neither Party shall have any authority or power to bind or obligate the other Party.

14.8 This Agreement is binding upon the Parties and their respective successors and permitted assigns and substitutes and will be enforceable by and against the Parties or those successors and permitted assigns and substitutes.

14.9 This Agreement may be executed in separate counterparts, and may be delivered by electronic transmission of a scanned executed original, each of which will be deemed an original, and when executed separately or together, will constitute a single original instrument, effective in the same manner as if the Parties had executed and exchanged one and the same instrument.

14.10 The Agreement will be governed by, and construed in accordance with, the laws of the Republic of Singapore, excluding its conflict of laws provisions. Any dispute arising out of or in connection with this Agreement, including any question regarding its existence, validity or termination, shall be referred to and finally resolved by arbitration in Singapore in accordance with the Arbitration Rules of the Singapore International Arbitration Centre ("SIAC") for the time being in force, which rules shall be deemed to be incorporated by reference in this Agreement. The arbitral tribunal shall consist of a single arbitrator to be appointed by the Chairman of the SIAC. The decision or award of the arbitrator shall be final and binding upon the Parties.

15. Special Conditions

15.1 The special conditions, if any, identified in Item 5, are incorporated as part of the terms of this Agreement. In the event of any inconsistency between the special conditions and the terms of this Agreement, the special conditions will prevail to the extent of the inconsistency.